

25STCV06272 25STCV06272

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV06272 Hearing Date: September 22, 2026 Dept: 512

HEARING DATE: Tues., September 22, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Shih

v. Nunez, et al. COMP. FILED: 03-05-25

CASE NUMBER: 25STCV06272 FAC FILED: 06-20-25

NOTICE: NO

PROCEEDINGS: MOTION

FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

MOVING PARTY: Defendants

Leon Chien Corp dba Re/Max 2000 Realty and Qing Li Martin

RESP. PARTY: Plaintiff

Dah Ren Shih

MOTION FOR

SUMMARY JUDGMENT/ADJUDICATION

(CCP § 437c)

TENTATIVE RULING:

Defendants Leon Chien Corp

dba Re/Max 2000 Realty and Qing Li Martin's Motion for Summary Judgment or, in the Alternative, Summary Adjudication of Issues is DENIED.

Moving parties are ordered
to give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC,
rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) NO

OPPOSITION: Filed
on August 7, 2026 ☐
Late ☐ None

REPLY: Filed
on August 24, 2026 ☐ Late ☐ None

ANALYSIS:

I.
Background

On March 5, 2025, Plaintiff Dah Ren
Shih ("Plaintiff") filed the instant action against Defendants Jared Nunez;
Ambiance Realty, Inc.; Qing Li Martin; and Leon Chien Corp. dba RE/MAX 2000
Realty ("Defendants") and Does 1-100.

On June
20, 2025, Plaintiff filed a First Amended Complaint ("FAC") against Defendants
and Does 1-100, alleging causes of action for Professional Negligence, Breach
of Fiduciary Duty, Breach of Listing Agreement, Fraud, Negligent
Misrepresentation, and Intentional Infliction of Emotional Distress ("IIED"). The underlying action involves Plaintiff,
Martin, RE/MAX, and Does' entrance into a listing agreement for sale of
Plaintiff's real property; however, while Plaintiff was out of the country
caregiving for an ill family member, Martin and RE/MAX allegedly failed to
close escrow at the time agreed-upon by the parties and despite a

time-is-of-the-essence clause in the agreement; Martin and RE/MAX invalidly closed escrow without Plaintiff's authorization; the buyers locked Plaintiff out of the subject property prior to Plaintiff collecting all of Plaintiff's personal belongings from the property; and the buyers and their representative excluded Plaintiff from his property and illegally kept certain of Plaintiff's personal belongings.

On June

23, 2025, Martin and RE/MAX filed an Answer.

On June

12, 2026, Martin and RE/MAX ("Moving Defendants") filed the instant Motion for Summary Judgment or, in the Alternative, Summary Adjudication of Issues (the "Motion") and request for judicial request ("RJN").

On

August 7, 2026, Plaintiff filed an Opposition, a Response and Limited Objection to the RJN, and Evidentiary Objections.

On

August 24, 2026, Moving Defendants filed a Reply.

On

August 31, 2026, the Court continued the hearing on the Motion.

On

September 1, 2026, Plaintiff filed and served Notice of Ruling.

II.

Procedural

Issues

As an initial matter, the Court finds the Motion was untimely filed and served in regard to the original Motion hearing date. The Motion was filed and served by electronic service on June 12, 2026 (Motion, Proof of Service), and the time appointed for hearing on the Motion was September 4, 2026.

Code of Civil Procedure section 437c

provides in pertinent part:

A party may move for summary judgment

in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct.

Notice of the motion and supporting

papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.

The motion shall be heard no later

than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading.

(Code Civ. Proc.,

§ 437c, subd. (a)(1)-(3).)

Here, the Motion was filed and served

82 days before the time appointed for hearing, which is less than the required 83 days given the manner of service. Further, the Court did not for good cause order otherwise prior to the original Motion hearing date.

Accordingly, the Motion is untimely.

(See Robinson v. Woods (2008) 168 Cal.App.4th 1258.)

However, the Court finds Plaintiff

waived any alleged defective service or inadequate notice by failing to raise the timeliness issue in the Opposition and filing an Opposition fully on the merits. (Carlton v. Quint (2000) 77 Cal.App.4th 690, 698.)

Thus,
the Court proceeds to address the Motion on the merits.

III.

Evidentiary
Objections

In conjunction with the Opposition,
Plaintiff filed Evidentiary Objections to various portions of the Campo
declaration and Martin declaration filed in support of the Motion; the RJN
filed in support of the Motion to the extent the subject FAC in the RJN is
offered for the truth of its contents; and portions of Moving Defendants'
Separate Statement. The Court OVERRULES these objections.

IV.

Request
for Judicial Notice

In support of the Motion, Moving
Defendants requests the Court take judicial notice of the FAC in Case No. CVRI1240139.
(Motion, RJN, pp. 1-2, Exh. 1.)

The Court GRANTS this request pursuant
to Evidence Code section 452, subdivision (d) but not for the truth of the
matters asserted.

V.

Legal
Standard

Summary judgment
is proper "if all the papers submitted show that there is no triable issue as
to any material fact and that the moving party is entitled to judgment as a
matter of law." (Code Civ. Proc. § 437c,
subd. (c).) The moving party
"bears the burden of persuasion that there is no triable issue of material
fact." (Aguilar v. Atlantic Richfield
Co. (2001) 25 Cal.4th 826, 850 (Aguilar).) To secure summary judgment, a moving
defendant may prove an affirmative defense, disprove at least one essential

element of the Plaintiff's cause of action . . . or show that an element of the cause of action cannot be established.”

(Sanchez v. Swinerton & Walberg Co. (1996) 47 Cal.App.4th 1461, 1465; Code Civ. Proc., § 437c, subd. (p)(2).)

“The defendant

may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing. But . . . the defendant must indeed present evidence.” (Aguilar, supra, 25 Cal.4th at p. 855.) “In other words, all that the defendant need do is to show that the plaintiff cannot establish at least one element of the cause of action—for example, that the plaintiff cannot prove element X.” (Id., at 853.) Summary judgment in California “may be reduced to, and justified by, a single proposition: If a party moving for summary judgment in any action . . . would prevail at trial without submission of any issue of material fact to a trier of fact for determination, then he should prevail on summary judgment. In such a case . . . the ‘court should grant’ the motion ‘and ‘avoid a . . . trial’ rendered ‘useless’ by nonsuit or directed verdict or similar device. (Id., at p. 855.)

Until the moving

defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

Code of Civil Procedure Section 437c,

subdivision (f) provides that a party may move for summary adjudication as to one or more causes of action or one or more claims for damages if it is contended that the cause or claim has no merit. Motions for summary

adjudication are procedurally identical to motions for summary judgment. (Code Civ. Proc., § 437c, subd. (f)(2); see *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 859.)

VI.

Discussion

Cause of

Action No. 1 – Professional Negligence

“ ‘It is now settled in California that where the seller knows of facts materially affecting the value or desirability of the property which are known or accessible only to him and also knows that such facts are not known to, or within the reach of the diligent attention and observation of the buyer, the seller is under a duty to disclose them to the buyer. [Citations.]’ [Citations.] When the seller’s real estate agent or broker is also aware of such facts, ‘he [or she] is under the same duty of disclosure.’ [Citation.] A real estate agent or broker may be liable ‘for mere nondisclosure since his [or her] conduct in the transaction amounts to a representation of the nonexistence of the facts which he has failed to disclose [citation].’ ” (*Holmes v. Summer* (2010) 188 Cal.App.4th 1510, 1518-1519.)

“[R]eal estate agents or brokers have been held to have a duty to disclose matters that do not pertain to physical defects, but otherwise affect the desirability of the purchase. (See, e.g., *Alexander v. McKnight* (1992) 7 Cal.App.4th 973 [9 Cal. Rptr. 2d 453] [duty to disclose neighborhood nuisance]; *Reed v. King* (1983) 145 Cal.App.3d 261 [193 Cal. Rptr. 130] [duty to disclose murders on the property]; *Lingsch v. Savage*, supra, 213 Cal.App.2d at p. 737 [duty to disclose that improvements were constructed in violation of building codes or zoning regulations].) They have also been held to have a duty to disclose conditions to close of escrow. (*Wilson v. Lewis*, supra, 106 Cal.App.3d at pp. 807–809 [duty to disclose conditions regarding inspection and date of deposit].)” (*Id.*, at p. 1320.)

“The elements of a negligence cause of action are duty, breach, causation and damages.” (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

“Whether

an intervening force is superseding or not generally presents a question of

fact, but becomes a matter of law where only one reasonable conclusion may be reached.” (Chanda v. Fed. Home Loans Corp. (2013) 215 Cal.App.4th 746, 756.)

“Even

when a third party's intervening act is unforeseeable, the defendant's conduct may continue to operate as a legal cause if the defendant could reasonably foresee the injury resulting from his own conduct.” (Cole v. Town of Los Gatos (2012) 205 Cal.App.4th 749, 770.)

Here, Moving Defendants challenge this cause of action solely the element of causation and, in particular, proximate causation. (Motion, pp. 15-20, Sep. Statement, ¶¶ 1-29.) In support of this challenge, Moving Defendants present evidence of Plaintiff's responses to special interrogatories, a declaration from Martin, a copy of a 12/12/23 per diem amendment, photographs of Plaintiff's allegedly stolen belongings, and various pieces of communication exchanged between the subject parties, including by way of WeChat messages. (Motion, Martin Decl., Exhs., A, B, D, E, F, Sep. Statement, ¶¶ 1-29.) Moving Defendants' evidence shows that Moving Defendants conducted additional investigation and were under the reasonable belief that the extended December closing/January closing was legitimate. Further, Moving Defendants submit evidence that Plaintiff lacks evidence to demonstrate that any of the claimed stolen items from the property were present at the subject property on or after the closing date.

Thus, Moving

Defendants satisfied their burden. The burden shifts to Plaintiff to demonstrate a triable issue of material fact.

In support of

the Opposition, Plaintiff submits evidence of Plaintiff's counsel's declaration and Plaintiff's declaration as well as various exhibits, including excerpts from Martin's deposition testimony and RE/MAX's person most qualified's deposition; the signed document by which the parties agreed to extend the escrow date to December 15, 2023, not later; communications between the parties, including WeChat messages; and emails in which Plaintiff protested escrow closing after the mid-December deadline. (Opp., Shin Decl., Exhs. A-D, Hardy Decl., Exhs. 1-4, Opp. Sep. Statement, ¶¶ 1-29.) Plaintiff's evidence shows that Plaintiff did not formally approve a closing date after December 15, 2023,

and Plaintiff still had personal belongings in the subject property after closing.

The Court finds

Plaintiff has demonstrated there is a triable issue of material fact as to whether Moving Defendants had adequate authority from Plaintiff to close escrow on the date they did, and whether Moving Defendants could have reasonably foreseen that delivering possession of the subject property prior to Plaintiff removing all personal property from the premises could lead to loss or theft of property.

Thus, the Motion

is DENIED as to the first cause of action.

To the extent

Moving Defendants contend the WeChat messages between the parties and the time-is-of-the-essence clause in the parties' agreement regarding the subject property demonstrate waiver and/or estoppel as a matter of law (see Motion, pp. 20-21, Sep. Statement, ¶¶

30-58), the Court finds all the evidence presented by the parties demonstrates there is a triable issue of material fact as to these issues. Indeed, the WeChat messages, taken in context with the other submitted evidence, and the time-is-of-the essence clause, paired with Plaintiff's undisputed circumstances and physical location at the time of closing, demonstrate there is a factual dispute regarding these issues.

Moreover, the

Court does not find that the evidence presented by Moving Defendants in support of the Reply – namely, deposition testimony from Plaintiff taken after the filing of the Motion – demonstrates that summary judgment or adjudication on causation is warranted either. (See Reply, p. 6, Campo Decl., Exh. 1.)

Cause of Action No. 2 – Breach of
Fiduciary Duty

To establish a cause of action for

breach of fiduciary duty, plaintiff must plead " '(1) existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach.' " (Gutierrez v. Girardi (2011) 194 Cal.App.4th 925, 932, citation omitted.) A fiduciary relationship requires that a relationship

existing between parties to a transaction wherein one of the parties is duty bound to act with the utmost good faith for the benefit of the other party. (Wolf v. Superior Court (2003) 107 Cal.App.4th 25, 29.) A relationship ordinarily exists when “ ‘a confidence is reposed by one person in the integrity of another, and ... the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter’s knowledge or consent.’ ” (Ibid., citation omitted.)

Here, Moving Defendants challenge this cause of action solely on the element of causation. Given the Court’s discussion supra, the Court finds there is a triable issue of material fact as to causation for this cause of action for the reasons discussed above.

Thus, the Motion is DENIED as to the second cause of action.

Cause of Action No. 3 – Breach of Listing Agreement

A cause of action for breach of contract must plead “(1) the contract, (2) plaintiff’s performance or excuse for non-performance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.” (Acoustics, Inc. v. Trepte Constr. Co. (1971) 14 Cal.App.3d 887, 913.) A written contract can be pled by alleging its making and attaching a copy to the complaint or by alleging the making and the substance of the relevant terms. (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.) The terms of an “oral contract may be pleaded generally as to its effect, because it is rarely possible to allege the exact words.” (Scolinos v. Kolts (1995) 37 Cal.App.4th 635, 640.) Finally, an implied-in-fact contract can be alleged based on the promisor’s conduct. (Gomez v. Lincare, Inc. (2009) 173 Cal.App.4th 508, 525.)

Here, Moving Defendants challenge this cause of action solely on the element of causation. Given the Court’s discussion supra, the Court finds there is a triable issue of material fact as to causation for this cause of action for the reasons discussed above.

Thus, the Motion is DENIED as to the

third cause of action.

Cause of Action Nos. 4 and 5 – Fraud

The elements of fraud are: “ ‘(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.’ ” (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184, citing Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) A cause of action for fraud must be “ ‘pled specifically; general and conclusory allegations do not suffice. ... “ ‘This particularity requirement necessitates pleading facts which “ ‘show how, when, where, to whom, and by what means the representations were tendered.’ ” ’ ” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184, citing Lazar, supra, 12 Cal.4th at p. 645.)

The elements of a cause of action for negligent misrepresentation include “ ‘[m]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another’s reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage.’ ” (Hydro-Mill Co., Inc. v. Hayward, Tilton & Rolapp Ins. Associates, Inc. (2004) 115 Cal.App.4th 1145, 1154.)

“A plaintiff may assert a fraudulent concealment cause of action based on conduct occurring in the course of a contractual relationship if the elements of the claim can be established independently of the parties’ contractual rights and obligations, and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 13.)

“[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred (but see generally fns. 3 & 5 at pp. 19, ante, & 23, post) unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when

they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (Rattagan, supra, 17 Cal.5th at pp. 20-21.)

"Promissory fraud thus consists of making a promise without the present intention to perform it, i.e., misrepresenting the speaker's then-present intentions." (Yield Dynamics, Inc. v. TEA Systems Corp. (2007) 154 Cal.App.4th 547, 575, emphasis in original.)

" 'A promise made without any intention of performing it' constitutes actual fraud." (Church of Merciful Savior v. Volunteers of America, Inc. (1960) 184 Cal.App.2d 851, 858.) "Civil Code section 1566 provides that consent to a contract is voidable when obtained by, among other things, fraud. Civil Code section 1571 distinguishes between actual fraud and constructive fraud.... Civil Code section 1572 is limited to acts committed by one party to a contract with intent to deceive another party to the contract or to induce someone to enter into a contract." (Masters v. San Bernardino County Employees Retirement Assn. (1995) 32 Cal.App.4th 30, 41.)

Here, Moving Defendants contend Plaintiff lacks evidence to demonstrate that any of the elements for fraud and negligent misrepresentation exist. (Motion, pp. 21-23, Sep. Statement, ¶¶ 59-87.) In support of this contention, Moving Defendants present evidence of a declaration from Martin, the underlying agreement in this action that contains a time-is-of-the-essence clause, a declaration from defense counsel, deposition testimony excerpts, WeChat messages exchanged between the parties, and Plaintiff's responses to special interrogatories. (Motion, Statement, ¶¶ 59-87, Martin Decl., Campo Decl.) Moving Defendants assert that the evidence, and Plaintiff's lack of evidence, shows that Plaintiff's personal property was stolen after close of escrow; Martin never knew that Plaintiff's allegedly stolen property was still in the home following Plaintiff's removal of certain belongings; Martin did not know that there was anything amiss with the close of escrow; and Plaintiff unreasonably relied on previous representations regarding the close of escrow in light of the parties' WeChat messages and subsequent conduct.

The Court finds
Moving Defendants have met their burden of proof. The burden shifts to

Plaintiff to demonstrate a triable issue of material fact.

In Opposition,

Plaintiff submits evidence of Plaintiff's counsel's declaration and Plaintiff's declaration as well as various exhibits, including excerpts from Martin's deposition testimony and RE/MAX's person most qualified's deposition; the signed document by which the parties agreed to extend the escrow date to December 15, 2023, not later; communications between the parties, including WeChat messages; Martin's responses to requests for admission; and emails in which Plaintiff protested escrow closing after the mid-December deadline. (Opp., Shin Decl., Exhs. A-D, Hardy Decl., Exhs. 1-4, Opp. Sep. Statement, ¶¶ 59-87.) Plaintiff contends the evidence shows that Plaintiff did not authorize the closing date, and Martin knew possession had not been delivered by Plaintiff, Plaintiff's personal property remained in the property, and the buyer's agent intended to use a locksmith if Plaintiff did not respond. (See e.g., Opp. Sep. Statement, ¶¶ 59-87, Hardy Decl., Exh. 2, Exh. 4, ¶¶ 6-8.) Further, Plaintiff's evidence demonstrates that Martin misrepresented the existing material fact of the actual closing date with the intent to induce Plaintiff's reliance, and Plaintiff reasonably relied on Martin's representations and the signed written documents between the parties and the belief that material changes required signed documents. (See e.g., Opp. Sep. Statement, ¶¶ 77-78, Shih Decl., Exh. A.) Plaintiff suffered damages of the loss of personal belongings and distress as a result of Martin's actions.

The Court finds

Plaintiff has demonstrated there is a triable issue of material fact.

Thus, the Motion

is DENIED as to the fourth and fifth causes of action.

Cause of Action No. 6 – IIED

“ ‘The elements

of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.’ ”

(Wilson v. Hynek (2012) 207

Cal.App.4th 999, 1009, citation and ellipses omitted.)

Here, Moving Defendants contend that their actions in this case do not constitute extreme and outrageous conduct and submit evidence of Plaintiff's responses to special interrogatories – in particular, Nos. 22 and 23 – a declaration from Martin, a copy of a 12/12/23 per diem amendment, photographs of Plaintiff's allegedly stolen belongings, and various pieces of communication exchanged between the subject parties, including by way of WeChat messages, to support the contention. (Motion, Martin Decl., Exhs., A, B, D, E, F, Sep. Statement, ¶¶ 117-145.)

The Court does not find the evidence presented by Moving Defendants has met their burden.

Moreover, the Court finds that Plaintiff's evidence demonstrates there is a triable issue of material fact as to whether Moving Defendants' fraudulent conduct allowed for the re-keying of Plaintiff's property and loss of valued possessions and whether this conduct constitutes extreme or outrageous conduct (see e.g., Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1045-1046), and whether Plaintiff "experienced shock, humiliation, anxiety, fear, anger, loss of sleep, difficulty concentrating, and continuing distress from losing control of [Plaintiff's] home and being denied access to family possessions and records. The distress was intensified by [Plaintiff's] father's illness and by having to involve law enforcement repeatedly simply to seek access to [Plaintiff's] own home and belongings." (See Opp., Sep. Statement ¶¶ 117-145, Shih Decl., ¶ 19, Hardy Decl., Exhs. 2-4; see also Hailey v. California Physicians' Service (2007) 158 Cal.App.4th 452, 474-77; Michaelian v. State Comp. Ins. Fund (1996) 50 Cal.App.4th 1093, 1114.)

Thus, the Motion is DENIED as to the sixth cause of action.

Punitive Damages

Given the Court having denied the Motion as to the fraud causes of action, the Court finds the Motion's request regarding the punitive damages in the FAC to be MOOT.

Thus, the Motion is DENIED as to the
punitive damages request.

VII.

Conclusion
& Order

For the foregoing reasons,
Defendants Leon Chien Corp dba Re/Max 2000 Realty and Qing Li Martin's Motion
for Summary Judgment or, in the Alternative, Summary Adjudication of Issues is
DENIED.

Moving parties are ordered
to give notice.